

rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.’ [Citation.] When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.’” *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants. Indeed, Plaintiff demonstrates a level of sophistication in the manner in which she has filed pleadings and pursued relief on her own behalf since this case was initiated on August 20, 2024.

Failure to File a Timely Opposition

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Applied here, the Court finds that failure to timely oppose both the Motion to Strike and the Demurrer is a deemed to be her consent to the granting of both motions.

Ruling

Defendant United States Fire Insurance Company’s Motion to Strike is **granted**. Defendant United States Fire Insurance Company’s Demurrer to Plaintiff’s Seconded Amended Complaint is **sustained** without leave to amend. The Court will execute the two proposed orders lodged by Defendant U.S. Fire on September 19, 2025.

10. 9:00 AM CASE NUMBER: C24-02203
CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY
***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S 2ND AMENDED COMPLAINT**
FILED BY: UNITED STATES FIRE INSURANCE COMPANY
TENTATIVE RULING:
See Line 9.

11. 9:00 AM CASE NUMBER: C24-03229

CASE NAME: ANTONE DUNCAN VS. MARCUS STERN

***HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH 1ST AMENDED NOTICE OF DEPOSITION**

FILED BY: DUNCAN, ANTONE

TENTATIVE RULING:

Summary

Plaintiffs Antone Duncan, Terrance Duncan, and Angela Duncan's ("Plaintiffs") Motion to Compel Compliance with First Amended Notice of Deposition and for Monetary Sanctions against Defendant Budget Truck Rental, LLC ("Budget") is **granted** in the manner set forth below.

Background

This action arises from a motor vehicle accident. Plaintiffs allege that on August 23, 2023, Defendant Marcus Stern was operating a full-size moving van within the scope of his employment with Defendants Golden Gate Relocation LLC and Golden Gate Relocations LLC when he lost control of the vehicle and collided with Plaintiffs' residence in El Cerrito, California. The moving van was owned, operated, maintained, repaired, and used by Defendant Budget, among others.

On December 2, 2024, Plaintiffs initiated this lawsuit, asserting claims for general negligence and motor vehicle accident against Budget and other defendants. Plaintiffs contend that the collision caused extensive damage to their residential property and personal belongings.

On August 26, 2025, Plaintiffs served a Notice of Deposition of Persons Most Knowledgeable from Budget regarding insurance coverage. The Notice also sought the production of Documents Nos. 1-20 pertaining to insurance maintained by Budget that may provide coverage for the incident. The Notice scheduled a date for the deposition and requested alternative dates. Budget served blanket objections to the Notice but failed to provide alternative dates for the appearance of a witness or the production of documents. Following the parties' meet and confer obligations, Budget continued to refuse to comply with Plaintiffs' request to schedule the deposition. To date, no deposition has taken place, and Budget has failed to make a witness available. However, Budget produced certain documents after the filing of this motion that may be responsive to Plaintiffs' discovery requests.

On October 9, 2026, Plaintiffs filed the instant Motion to Compel Compliance with First Amended Notice of Deposition and for Monetary Sanctions. The Motion is supported by a Notice, Memorandum of Points and Authorities, Separate Statement, and Declaration of Counsel Susan Kang Gordon. The Motion seeks an order compelling Budget to produce witnesses most knowledgeable to testify regarding insurance coverage and requests the production of documents Nos. 1-20 no later than five days prior to the deposition. Plaintiffs assert that Budget failed to appear and produce the requested documents without valid objection pursuant to Code of Civil Procedure § 2025.450(a). Plaintiffs further seek sanctions in the amount of \$5,915 in attorney's fees incurred in bringing this Motion.

On September 29, 2025, Budget filed an opposition, supported by a Memorandum of Points and Authorities and Declaration of Counsel Gene Stone. The Opposition asserts that Budget served timely and appropriate objections to the documents sought by Plaintiffs. Among these objections, Defense contends that the deposition notice did not allow adequate time to produce witnesses and that the

requested documents were duplicative of materials previously produced in response to a Request for Production of Documents.

Notably absent from Defendant's objections is any statement proposing a date for the deposition of the insurance witness. Plaintiffs filed a further response and declaration on January 7, 2026, which the Court has reviewed. Plaintiffs acknowledge that Budget was ultimately required to produce the self-insured policy documents, but note that such production was necessitated by the filing of this motion to compel.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

The Court finds that Plaintiffs' notice of deposition and the accompanying request for production of documents are relevant, as the items sought are reasonably calculated to lead to the discovery of admissible evidence.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e), (f), (h), and (i), it constitutes a misuse of the discovery process to make, without substantial justification, an unmeritorious objection to discovery; to make an evasive response to discovery; to oppose unsuccessfully without substantial justification a motion to compel or limit discovery; or to fail to meet and confer to resolve discovery disputes informally.

Boilerplate objections fail to satisfy the specificity mandated by statute and may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e), (f), and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220(b), (c).

It is improper for a party to respond to discovery by making unmeritorious objections and subsequently refusing to identify or produce responsive documents. California's Discovery Act was intended to remove the "game" element from trial preparation, predicated on the understanding that "a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise." (*Greyhound Corp. v. Super. Court In and For Merced County, supra*, (1961) 56 Cal.2d 355).

The Court finds that Budget's objections constitute blanket objections lacking in merit. The objections fail to include any statement that Budget will produce documents in response to the request. The insurance documents sought from a self-insured litigant are relevant, and the request for their production is neither oppressive nor harassing. Budget's blanket objections are therefore improper.

Furthermore, objections based on unavailability are meritless. Budget is required to meet and confer to provide dates for the production of a witness. Budget cannot evade this obligation by simply objecting that neither counsel nor a witness is available. Budget's actions constitute the type of gamesmanship discouraged by *Greyhound, supra*. Further misconduct may support terminating sanctions.

Attorney-Client and Work Product Privileges

If a responding party seeks to assert the attorney-client privilege or the work product doctrine, it must provide a privilege log specifying in detail each document withheld, the date of the document, the author, and the privilege asserted. (Cal. Code of Civ. Proc. § 2031.240(c)(1).) Applied here, where Defendants object to production and assert the attorney-client privilege or work product privilege, they are required to produce a privilege log. Budget's responses do not identify a privilege log in conjunction with the assertion of a blanket attorney-client or work product privilege. This constitutes a misuse of the discovery process.

Having reviewed the papers submitted by counsel and applied the relevant statutory and decisional authority, the Court finds good cause to make the following findings, rulings, and orders.

Ruling

1. Plaintiffs' Motion to Compel Deposition of Budget's Persons Most Knowledgeable to provide testimony regarding insurance is **granted**. Budget shall produce a person most knowledgeable for deposition within ten (10) days from the date of service of this order. This witness must be made available to Plaintiffs for deposition for at least six (6) hours per day and shall continue on a day to day basis until the deposition is complete.
2. Budget's objections to producing this witness are **overruled**.
3. Plaintiff's Motion to Compel Production of Documents Nos. 1-20, contained in the Notice of Deposition, is **granted**. Budget's blanket objections are overruled. All responsive documents must be produced to Plaintiffs at least five (5) days before the deposition of Budget's insurance witness. Where counsel asserts the attorney-client or work product privilege,

Counsel shall produce a privilege log in compliance with Cal. Code of Civ. Proc. § 2031.240(c)(1).

4. The Court finds that Budget's actions in making meritless objections and in failing to produce a PMK witness after several attempts to meet and confer constitutes misuse of the discovery process pursuant to Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), and (i). Such actions are sanctionable.
5. The Court **grants** Plaintiffs' request for sanctions. Defendant Budget is ordered to pay sanctions in the amount of \$4,500 to Plaintiffs, which the court determines to be reasonable attorney's fees, no later than ten (10) days from the date of service of this order.
6. Plaintiffs' Counsel is ordered to prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling to the order no later than ten (10) days from the date of the hearing of this Motion.
7. The Court orders Counsel to meet and confer to resolve, without further hearing, the discovery disputes that are calendared for discovery motions on April 29, 2026 at 9:00 a.m. in Department 16. This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. The Court informs Counsel that Cal. Bus. & Prof. Code § 6086.7(a)(3) requires this Court to notify the State Bar of "the imposition of any judicial sanctions against an attorney, except sanctions for failure to make discovery or monetary sanctions of less than one thousand dollars (\$1,000.)" Cal. Bus. & Prof. Code § 6086.7(b) and Rule No. 10.609 also requires the court to notify the attorney involved that the matter has been referred to the State Bar. The Court interpret these rules liberally to mean that if the Court grants a discovery motion and sanctions and fees exceed \$1,000 against an attorney, the Court is required to report counsel to the State Bar. This is consistent with California Rules of Court Rule No. 10-609, Cal. Bus. & Prof. Code § 6086.7 and California Judges Association Formal Ethics Opinion No. 74 the mandatory duty to report the imposition of sanctions to the State Bar, as they exceed \$1,000. (*City of Los Angeles v. PWC LLP* (2024) 17 Cal.5th 46, 50). The Court will reserve its authority to appoint a Discovery Referee to hear the motions scheduled for April 29, 2026 if the Parties have not resolved the disputes prior to the hearing of these motions.

12. 9:00 AM CASE NUMBER: C25-00443
CASE NAME: MARIA MARTINEZ VS. SELENE FINANCE LP
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: SELENE FINANCE LP

TENTATIVE RULING:

Introduction

Before the Court is Defendant SELENE FINANCE, L.P. ("Selene") and US BANK TRUST NATIONAL ASSOCIATION NOT IN ITS INDIVIDUAL CAPACITY BUT SOLELY AS OWNER TRUSTEE FOR LEGACY MORTGAGE ASSOCIATION ASSET TRUST 2021-GS2 ("USBT")(collectively "Defendants") Demurrer. The Demurrer relates to Plaintiffs Maria Martinez's First Amended Complaint (FAC) for six wrongful foreclosure related cause of actions.

For the following reasons, **the Demurrer is overruled as to the 29223.5 and the wrongful foreclosure claim and sustained as to the remaining claims with leave to amend.**

Meet and Confer Requirement

Defendant satisfied their meet and confer requirement regarding their Demurrer in detailing their